

GZ: 2023-0.309.542 dated July 21, 2023 (Case Number: DSB-D124.0220/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION STATEMENT

The Data Protection Authority decides on the data protection complaint of Georg A***
(complainant)

dated

February 13, 2023

against

the

Commission for Positioning

of the Military Command Styria as the first respondent and the Federal Minister for

Defense as the second respondent due to a violation of the right to erasure as follows:

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The complaint is dismissed as unfounded.

Legal bases: §§ 1 para. 2, para. 3 no. 2 and para. 4, 24 para. 1 and para. 5, 34 para. 5, 36, 38, 42 para. 5 as well as 45 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended, §§ 2, 10,

11, 15, 17, 18b, 24, 31, 55a, Military Act 2001 (WG 2001), Federal Law Gazette I No. 146/2001 (WV) as amended;

Art. 9a Federal Constitution Act (B-VG), Federal Law Gazette No. 1/1930 (WV) as amended.

REASONING

A. Submissions of the parties and procedural history

1. In an introductory submission dated February 13, 2023, improved by a letter dated February 15, 2023, and supplemented based on the statement of the respondents with a letter dated March 15, 2023, the complainant alleged a violation of his right to erasure and essentially claimed that the respondents had not complied with his request for erasure dated January 3, 2023. The complainant was informed by a decision of the first respondent, the Commission for Positioning of the Military Command Styria, dated January 21, 2009, that he was unfit for service and that all personal data and (personnel files and electronic records) were to be deleted.

2. In a statement dated February 22, 2023, the second respondent replied, both for herself and for the first respondent, initially stating that the second respondent was the data protection responsible party and that, due to the data protection legal provisions of military law, the personal data of the complainant were not to be deleted. Regarding the first point, the respondents argued that in the case of data processing in accordance with § 36 para. 2 no. 2 DSG by a subordinate entity of the second respondent, she was fundamentally the data protection responsible party due to her directive authority. The only exceptions were matters that had to be handled by entities of the department without instruction due to explicit legal provisions, which was not the case here. In this context, the first respondent was not the data protection responsible party according to § 6 SteKo-VO 2022 based on § 15 WG 2001, as she had neither the decision-making authority over the purposes nor the decision-making authority over the means of the processing related to the position. The purposes arose from the applicable military legal provisions, and the specific manner of carrying out the processing by the first respondent was regulated bindingly by the responsible specialist department of the central office of the second respondent. For the execution of this processing, centrally operated department-wide IT applications of the second respondent were provided, which had to be used by the first respondent. Therefore, the second respondent was the data protection responsible party according to § 36 para. 2 no. 8 DSG. The department members employed by the first respondent participated in the processing of the complainant's personal data under the responsibility of the second respondent as authorized officials.

The Data Protection Office, according to the business allocation (GE) for the central office of the BMLV, had the authority to represent matters in which the second respondent was the data protection responsible party as well as in matters where this legal status exceptionally belonged to other entities of the department concerning complaint proceedings before the Data Protection Authority.

Regarding the second point, the respondents stated that, presumably the complainant, had submitted a request for the deletion of his personal data via email on January 3, 2023, to the address: datenschutz@bmlv.gv.at. The complainant, date of birth: **. April 1991, was still far from reaching the age of 50. A person with this name was permanently unfit for service according to a telephone inquiry from the Military Command Styria. The request for deletion could not be followed because the complainant, as an Austrian citizen who had not yet reached the age of 50, was generally subject to military service according to § 10 para. 1 WG 2001. There was no civil service exemption in accordance with § 1 para. 4 ZDG. The determination of permanent unfitness did not affect the existence of military service obligation itself but expressed that a conscript (only) lacked the necessary physical and/or mental suitability for a potential use in the Federal Army as

****Soldier in the sense of § 9 Abs. 1 WG 2001 is lacking. Permanently unfit conscripts are to be classified as conscripts of the reserve status according to the definition of § 1 Abs. 5 WG 2001.****

Data processing of conscripts is particularly based on § 55a Abs. 1 WG 2001 and thus falls under the provisions of Art. 2 Abs. 2 lit. a DSGVO and is therefore excluded from the scope of the DSGVO. In this regard, the 3rd main part of the DSG is to be applied. Contrary to the statements of the complainant in his application for deletion, the permission condition of consent in the 3rd main part of the DSG is fundamentally not a possible legal basis for processing. The processing of the complainant's personal data would occur based on § 45 Abs. 2 DSG in conjunction with § 55a Abs. 1 WG 2001 as long as a basic call-up of the complainant is conceivable, and thus no data deletion can take place during this time. According to § 18b Abs. 4 WG 2001, conscripts have the possibility to undergo a renewed assessment if there are indications that a change in suitability is to be expected. This is possible both at the request of the conscript and ex officio according to military interests. In this regard, there is also case law from the VwGH. The legislator also assumed, according to the explanatory notes to § 37 Abs. 1 Z 5 DSG, that the duration of conscription should determine the duration of lawful data processing. Furthermore, the storage of the complainant's data is also necessary to avoid an (unintentional) renewed summons of the complainant for assessment. The complainant was informed of this by letter from the second respondent dated January 20, 2023. 3. In a hearing on March 15, 2023, the complainant reaffirmed his previous submissions and additionally stated that he could not be called up due to his permanent unfitness and therefore the storage of his personal data was not permissible. As a permanently unfit individual without completed basic military service, the complainant logically cannot be available in the reserve status as a reserve, as the necessary training is lacking and he is permanently unfit for use. Therefore, his personal data should be deleted. There is no purpose for use that would necessitate the storage.

****B. Subject of the Complaint****

Based on the procedural initiation submission of the complainant dated February 13, 2023, which was extended to the second respondent by letter dated March 15, 2023, the subject of the complaint is the question of whether the complainant has been violated in his right to deletion by the fact that his application dated January 3, 2023, was not granted.

****C. Findings of Fact****

The complainant was born on **. April 1991 in F*** and is a male Austrian citizen.

****Assessment of Evidence:**** The findings are based on the identity card submitted by the complainant for Austrian citizens.

The first respondent certified to the complainant by decision dated January 21, 2009, that he is "unfit" for military service based on medical and psychological examinations.

****Assessment of Evidence:**** The finding is based on the assessment decision of the first respondent dated January 21, 2009, submitted by the complainant.

The data protection office of the BMLV, reachable at the email address datenschutz@bmlv.gv.at, handles both the data protection issues for which the second respondent is the data protection controller and those situations in which other entities of the ministry are the data protection controllers.

****Assessment of Evidence:**** The finding is based on the statement of the respondents dated February 22, 2023, page 3.

The complainant submitted a deletion request on January 3, 2023, to the email address: datenschutz@bmlv.gv.at with the following request for deletion:

[Note by the editor: The document originally inserted as a graphic file has been converted into a text file for reproduction in the RIS and has been pseudonymized; therefore, the formatting does not exactly match the original text as reproduced in the decision.]

"From: "Georg A****" a****.georg@****provider.at

To: datenschutz,

Date: 03.01.23 08:41

Subject: Rights of the affected: Right to deletion of processing — GDPR — I kindly request a response!

Rights of the affected:

Right to deletion of processing?

GDPR deletion request? I kindly request a response!

The deletion of all my personal data in accordance with Art. 17 of the GDPR."

Dear Sir or Madam of the Army Personnel Office Data Protection Team,

I request that you immediately delete all data you have stored about me in accordance with Article 17 of the General Data Protection Regulation (GDPR). Furthermore, I would like to ensure that the deletion is also carried out by those entities to whom you have transmitted my data.

As a precaution, I revoke my consent, if it was validly granted, and oppose the data processing pursuant to Article 21 GDPR.

Which Federal Army Position Commission location is affected (the storage location):

Federal Army Military Command Styria

Position Commission Graz

**** -Barracks [...]

The affected years (the year 2009):

All personal Position Commission examination documents, files, and the digital personnel file must be immediately subjected to file destruction. The correct procedure is for a discreet employee to collect the personal Position Commission examination documents, files, and the digital personnel file while maintaining the necessary discretion and to carry out 100% file destruction and 100% data destruction immediately. All stored data in the databases (in all databases) must be completely deleted in accordance with Article 17 of the General Data Protection Regulation.

The reasons for deletion:

- A cessation of the purpose of processing.
- A revocation of the consent of the data subject.
- The personnel file folder or the electronic directory with the personnel files must be retained for at least 7 years.

The affected personnel file folder or the electronic directory (1x complete 1000% file destruction must be carried out. If an additional digital personnel file is also present, it must be completely deleted, all digital documents and personnel files must be completely deleted).

- 12 years retention period/retention term have expired? Position Commission Graz (from 2010 to 2022).

Therefore, I kindly request the deletion/destruction of all my stored personal data from all databases/all personnel files/scan images and photos/correspondence/letters according to Article 17 of the General Data Protection Regulation (GDPR).

Please confirm in writing and without delay, but no later than one month after receipt of the request, that the data deletion has been fully executed. You may send me this confirmation (with the details) free of charge and without delay, but no later than one month after receipt of the request, to the

following email address: a***.georg@***provider.at

Should you reject or ignore the GDPR deletion request, I will file a complaint with the Austrian Data Protection Authority.

If you do not comply with my deletion request, I urge you to promptly justify your decision to me, stating the legal basis. In this case, I request that you immediately block the relevant personal data (to restrict their further processing or use).

Thank you in advance for the 100% data deletion/100% file destruction and the confirmation (with the details).

Sincerely,
Georg A***

As proof of my identity, I enclose the following copies (as a PDF file):

1.) 1x proof of identity (see attachment, as a PDF file)

Note:

The 1x GDPR deletion request letter and 1x PDF file GDPR deletion request letter with the proof of identity should be deleted after the transmission of the confirmation (with the details) in accordance with Article 17 of the GDPR.

In a letter dated January 20, 2023, the Data Protection Office of the BMLV responded negatively to the request of the complainant:

[Note from the editor: The document originally inserted as a graphic file has been converted into a text file for reproduction in the RIS and pseudonymized; therefore, the formatting does not exactly match the original text reproduced in the decision. In particular, graphic elements in the header of the letter, footnotes, the production clause, and the official signature have been removed.]

"Federal Ministry of Defence

bmlv.gv.at

Business number: *4**4/2-BürDSB/2023 (1)

A*** Georg;

Deletion request pursuant to Article 17 GDPR or § 45 para. 2 DSG;

Resolution

Dear Mr. A***!

The Data Protection Office (DSBür) confirms receipt of your email dated January 3, 2023, in which you submit a deletion request referencing Article 17 GDPR to the BMLV.

Your request for deletion cannot be granted at this time due to the applicable legal provisions for the following reasons:

Austrian male citizens are generally subject to military service obligation until the completion of their 50th year of life, in accordance with § 10 para. 1 WG 2001. This also applies to conscripts of the reserve according to § 1 para. 5 WG 2001. Their personal data will be processed by the competent authorities of the BMLV based on data protection legal provisions of military law, particularly the comprehensive authorization provision of § 55a WG 2001. The processing of your data is necessary for the performance of the military law tasks assigned to the Federal Minister for Defence and other authorities responsible for the enforcement of military law provisions, particularly to ensure obligations associated with military service.

This processing of personal data based on and in accordance with military law authorization provisions falls outside the scope of the GDPR due to the exception rule of Art. 2 para. 2 lit a GDPR. Instead of the GDPR, the provisions of the 3rd main part of the DSG are to be applied, and the right of the affected person to deletion of personal data is to be assessed according to § 45 para. 2 DSG.

Primarily, the processing of personal data based on military law provisions serves to determine the suitability for military service and for comprehensive personnel management in connection with the

performance of military service. There is a necessity for the entire duration of a person's military obligation, among other things, to be able to ascertain whether and in what manner they can be called up for military service. Periods during which active service or training service is performed must be documented, among other things, for social and pension insurance matters.

Therefore, the storage of your personal data is required at least until the expiration of your military obligation according to § 10 para. 1 WG 2001, and thus until the end of the month in which you complete your 50th year of life. Any storage beyond that will only occur if and to the extent that other than military law statutory provisions necessitate processing.

You have the right according to § 24 DSG and Art. 77 GDPR to lodge a complaint with the supervisory authority if you believe that the processing of your personal data is not lawful. The address of the supervisory authority responsible for Austria is:

Austrian Data Protection Authority, Barichgasse 40-42, 1030 Vienna.

Best regards,

VIENNA, on 20.01.2023

The data concerning the complainant, which have been processed within the framework of the recruitment commission, are processed on centrally operated departmental IT applications provided by the BMLV. Deletion of the data has not occurred.

Evidence assessment: The findings result from the submissions of the parties as well as from the content of the files, which is unproblematic in this regard.

D. From a legal perspective, it follows:

Initially, it should be noted that the GDPR is not applicable due to the exception from the material scope in the sense of Art. 2 para. 2 lit a GDPR, as the matter in question concerns issues related to national defense, which generally do not fall within the scope of Union law (see also Art. 4 para. 2 TEU and Recital 16 GDPR).

Instead, according to § 4 para. 1 in conjunction with § 36 DSG, the provisions of the 3rd main part of the DSG are to be applied, as data processing concerning the determination of suitability for military service is to be classified under the broadly interpreted term of "national security" (see also ErlRV 65 BlgNR XXVI. GP, 174; cf. also Art. 9a para. 3 B-VG). Consequently, the storage of the data collected by the recruitment commission of the Military Command Styria concerning the complainant for the purpose of a possible re-recruitment of the complainant or a possible use as a reservist, as long as their military obligation still exists, is to be assessed under the regime of the 3rd main part of the DSG.

D.1. Regarding data protection responsibility

According to § 36 para. 2 no. 8 DSG, the competent authority that decides alone or jointly with others on the purposes and means of processing personal data is the "controller."

According to the materials for the Data Protection Adaptation Act 2018, the authorities responsible for the enforcement of the respective federal law are derived directly from the respective material law. As controllers in the sense of the 3rd main part of the Data Protection Act, the Federal Minister for Defence and the respective heads of authorities within the scope of their assigned tasks are to be understood (ErlRV 65 BlgNR XXVI. GP, 174).

According to § 15 para. 1 WG 2001, the military commands are to use the recruitment commission as the competent authority to determine the necessary physical and mental suitability of conscripts for military service (recruitment).

According to § 17 para. 1 WG 2001, the determination of the suitability of persons undergoing recruitment for military service is the responsibility of the recruitment commissions.

According to § 17 para. 2 WG 2001, the recruitment commissions must determine the suitability of the persons according to para. 1 for military service based on medical and psychological examinations with one of the following resolutions: "Fit" or "Temporarily unfit" or "Unfit."

The materials related to the WG 2001 also indicate that the assessment commission is the competent authority for conducting the assessment and, according to the consistent case law of the VwGH, the assessment decision issued by the assessment commission is to be qualified as an administrative decision. Thus, the assessment commission should be regarded as an authority, even if this does not

imply a change in the service and specialist supervision (ErlRV 161 BlgNR XXVI. GP, 4 ff).

Consequently, it should be noted that it is not the Federal Minister for Defense who is the competent authority for determining the physical and mental suitability of conscripts for military service, but rather the respective assessment commission that holds this role, which also decides on this matter through a decision to be qualified as an administrative decision.

In this context, the first respondent, the assessment commission of the Military Command Styria, was the competent authority for determining the physical and mental suitability for military service of the appellant as the competent authority under § 15 Abs. 1 in conjunction with § 6 of the Assessment Commissions Regulation 2022 in conjunction with § 17 WG 2001, and it has also issued a corresponding decision in accordance with its tasks assigned under the WG 2001, namely the assessment of military capability. The second respondent is therefore not the competent authority in this regard.

According to § 55a Abs. 1 WG 2001, the Federal Minister for Defense and other authorities entrusted with the execution of this federal law may process personal data of conscripts and other persons who are considered for military service, as well as of other persons whose data is required in the context of an administrative procedure under this federal law, for the performance of the tasks assigned to them under this federal law. [...].

Based on the previously described statements, it follows from § 55a Abs. 1 WG 2001 that it is the first respondent, not the second respondent, who is the competent authority regarding the assessment of the appellant's military capability, and thus it is also responsible for the decision on the purposes and means of the associated data processing, including the storage of the relevant personal data of the appellant, and the first respondent is therefore the data protection responsible party according to § 36 Abs. 2 Z 8 DSG. A data protection (co-)responsibility of the second respondent is not evident in this context, particularly from the provisions of the WG 2001.

D.2. Regarding the further storage of the appellant's personal data

The further storage of the appellant's personal data was permissible for the following reasons: According to § 45 Abs. 2 Z 1 DSG, the responsible party must delete personal data immediately, either on its own initiative or at the request of the affected person, if the personal data is no longer necessary for the purposes for which it was collected or otherwise processed. The same applies according to § 45 Abs. 2 Z 2 DSG for unlawfully processed data.

According to § 45 Abs. 4 DSG, the responsible party must inform the affected person in writing about a refusal to correct or delete personal data or to restrict processing and about the reasons for the refusal. The responsible party must inform the affected person about the possibility of filing a complaint with the data protection authority.

According to Art. 8 Abs. 1 of the DSRL-PJ, processing is only lawful if and to the extent that this processing is necessary for the performance of a task carried out by the competent authority for the purposes mentioned in Art. 1 Abs. 1 and is based on Union law or the law of the member states.

Both Art. 8 of the DSRL-PJ and § 38 DSG generally stipulate that processing is lawful, among other things, if it is provided for by law. Consequently, subject-specific legal provisions can also support the lawfulness of processing (see regarding the relationship between StPO and DSG the decision of the OGH of December 10, 2019, 11 Os 76/19i), provided that they specify the processing for the purposes of the DSRL-PJ or the 3rd main part of the DSG and are in accordance with Art. 8 of the DSRL-PJ.

In the present case, the provisions of the WG 2001 are relevant. It should first be noted in this context the already mentioned provision of § 55a WG 2001, according to which personal data of conscripts and other persons who are considered for military service, as well as of other persons whose data is required in the context of an administrative procedure under this federal law, may be processed, provided that this is necessary for the respective task fulfillment.

It is undisputed that the assessment data of the appellant were lawfully collected by the first

respondent (in the context of the tasks assigned to it by the WG 2001) for the purpose of determining the mental and physical suitability of the appellant for military service, and nothing else is evident. However, it is questionable whether this assessment data may also be stored after the certification of permanent unfitness.

****Art. 9a Abs. 3 B-VG**** establishes the general conscription for male citizens. In conjunction with § 10 Abs. 1 WG 2001, conscription applies to male citizens who have completed their 17th year of age and have not yet completed their 50th year of age. According to § 11 Abs. 1 WG 2001, conscription includes the obligation to report for duty, the obligation to perform active service, the obligations of the militia status, as well as the reporting and approval obligations according to paragraphs 4 to 6.

As an interim conclusion, it can thus be stated that the appellant is fundamentally subject to conscription, as he is a male Austrian citizen who has not yet completed his 50th year of age. The existence of conscription is not altered by the certificate of permanent unfitness, as can already be derived from a logical-systematic perspective in conjunction with § 11 Abs. 4 Z 1 WG 2001, which exempts conscripts whose permanent unfitness has been established from certain reporting and approval obligations.

The respondents can further be agreed with in that even permanently unfit conscripts can be subjected to a new assessment should there be indications that a change in fitness is to be assumed, as can be seen from a comparison of the transferable case law of the VwGH regarding § 24 Abs. 8 WG (see VwGH 14.11.1995, GZ 95/11/0214, as well as the provision of § 18b Abs. 4 WG 2001). Therefore, the storage of the appellant's conscription data for this purpose is permissible.

Notwithstanding this, all conscripts according to § 1 Abs. 2 WG 2001 belong to the active duty, militia, or reserve status for the duration of their conscription.

The appellant is thus a permanently unfit conscript and is therefore, as correctly stated by the respondents, assigned to the reserve status according to § 1 Abs. 5 WG 2011 (see VwGH 22.10.1991, GZ 91/11/0087 regarding the old, but transferable legal situation).

According to § 31 Abs. 5 WG 2001, conscripts of the reserve status can be transferred to the militia status in cases of deployment of the Federal Army according to § 2 Abs. 1 lit. a to c WG 2001 (military national defense, protection of constitutional institutions, as well as assistance in natural disasters) and for the immediate preparation of such deployment, ex officio, according to the needs and their suitability for use in the operational organization by decision. In other cases, a transfer to the militia status requires the consent of the affected conscript.

Thus, for this reason as well, the further storage of the data collected during the conscription process of the appellant until his discharge from conscription is appropriate and permissible, and the appellant's complaint was therefore to be dismissed.

Therefore, a decision was to be made accordingly in total.